Business Auto Policy

To report a claim please call (800) 503-3724

MERCURY INSURANCE

Declarations

General Information

Policy Number: BA350000009608

Date Sent: 07/30/2025

Policy Period: 08/01/2025 – 08/01/2026 12:01 AM
Standard time at the address of the Named Insured

Named Insured
TOBE ENERGY LLC
1820 SE 22ND ST
OKLAHOMA CITY, OK 73129-7514

Business Entity: Limited Liability Company

Annual Policy Premium: $2,818

Agent
RICH & CARTMILL INC (0039519)
2738 E 51ST ST
SUITE 400
TULSA, OK 74105
(918) 743-8811

Underwriting Company
American Mercury Insurance Company
13785 Research Blvd
Ste 125,Room 102
Austin, TX 78750
(800) 503-3724

Schedule of Covered Autos

Vehicle #1	2025 TOYOTA TUNDRA CREWMAX PLATINUM CREWMAX 1794 VIN: 5TFNC5DB3SX103445	Garaging Location: Oklahoma City, OK, 73129 Loss Payee: None

Comprehensive Actual Cash Value less $1,000 Deductible	$	376
Collision Actual Cash Value less $1,000 Deductible	$	440
Liability	$	1,311
Non-Factory Equipment $0	$	**
Roadside Assistance $100 per occurrence	$	20
Total Vehicle Premium	**$**	**2,147**

* Stated Amount coverage is an agreed limit on your vehicle's actual cash value, including the actual cash value of any Non-Factory Equipment permanently attached to the vehicle that you disclose to us, and is the most we will pay for a loss. Non-Factory Equipment coverage is subject to a sub-limit shown on the Declarations. Be sure to check the Stated Amount and Non-Factory Equipment sub-limit at every renewal to receive the best value from your Mercury Business Auto policy.

** Premium is included with Comprehensive/Collision when coverage is elected.

Coverage Summary

This policy provides only those coverages where a charge is shown in the premium column below.

Coverage	Limit of Insurance		Premium
Comprehensive	See Schedule of Covered Autos	$	376
Collision	See Schedule of Covered Autos	$	440
Liability	$1,000,000 Combined Single Limit	$	1,311
Roadside Assistance	$100 per occurrence	$	20
Non-Stacked Uninsured Motorists	$100,000 CSL	$	93
	Any Auto Liability	$	Included
	Blanket Additional Insured	$	75
	Blanket Waiver of Subrogation	$	75
	Broadening Endorsement	$	130
	Employer's Non-Ownership Liability	$	173
	Hired Auto Liability	$	125
	Total Policy Premium	**$**	**2,818**

Uninsured Motorist Bodily Injury Limit: This policy provides Uninsured Motorist Bodily Injury coverage on a "per policy" basis. This means the limit shown in the Coverage Summary for Uninsured Motorist Bodily Injury is the most we will pay for this coverage, regardless of the number of covered auto(s) insured on this policy. In addition, there is only one premium charge for this coverage on the policy regardless of the number of covered auto(s) insured. Please review the policy contract for additional details.

Driver(s)

Name	Rated	Excluded
COLBY DEWEESE	x	

Driver Coverage

Listed Driver	Policy provides coverage for listed drivers on the policy. **Additional provisions limiting coverage to state minimum limits for unlisted drivers may apply.** See policy form MCA OKBA 06 24 for details.	Rejected
Additional Driver	Policy provides coverage for listed drivers on the policy. **Additional provisions limiting coverage to state minimum limits for unlisted drivers may apply.** See policy form MCA OKBA 06 24 and MCA ADDR 03 23 for details.	Rejected
Expanded Driver	Policy provides coverage for non-excluded drivers on the policy. See policy form MCA OKBA 06 24 and MCA EXDR 03 23 for details.	Selected

Additional Coverages & Provisions

Important Notice
Warning Minimum Limits: In some cases, the policy affords only minimum limits of liability for bodily injury and property damage as specified by the compulsory or financial responsibility law of the jurisdiction where the loss occurred. Such minimum limits may be less than the stated policy limits.
Premium must be paid in United States dollars, and in a form acceptable to the company. See the Payment Options page on our website for details.

Discounts
Pay in Full
Multi-Line
Advance Quote

Policy Forms
MCA OKCC 05 21 - Common Policy Conditions
MCA OKBA 06 24 - Business Auto Coverage Form
MCA MSBE 03 23 - Mercury Business Auto Broadening Endorsement
MCA04440913 - Blanket Waiver of Subrogation
MCA 20 48 07 11 - Blanket Additional Insured
MCA MSUD 03 23 - Undisclosed Drivers Coverage Selection Form
MCA OKUN 05 21 - Oklahoma Uninsured Motorists Coverage
MCA AALI 10 22 - Any Auto Liability Coverage
MCA HALI 10 22 - Hired Auto Liability Coverage
MCA ENOL 03 23 - Employer's Non-Ownership Liability
MCA EXDR 03 23 - Expanded Driver Coverage
MCA RSAC 07 20 - Roadside Assistance Coverage
MCAU0230521 - Uninsured Motorists Coverage Selection - Rejection

STATE OF OKLAHOMA
SECURITY VERIFICATION FORM

POLICY NUMBER	EFFECTIVE DATE	EXPIRATION DATE
BA350000009608	**08/01/2025**	**08/01/2026**

American Mercury Insurance Company **NAIC # 16810**
13785 Research Blvd, Ste 125,Room 102 Austin, TX 78750
Policy pursuant to the Compulsory Insurance Law of Oklahoma. Examine policy exclusions carefully. This form does not constitute any part of your insurance policy. See "Warning" on reverse side.

NAMED INSURED **** COMMERCIAL AUTO POLICY ****
TOBE ENERGY LLC

YEAR	MAKE	MODEL	VIN
2025	**TOYOTA**	**TUNDRA CREWMAX**	**5TFNC5DB3SX103445**

AGENT: **RICH & CARTMILL INC**
AGENT ADDRESS: **2738 E 51ST ST SUITE 400, TULSA, OK 74105**

AGENT'S PHONE NUMBER: **(918) 743-8811**

TO REPORT A CLAIM, 24 HOURS A DAY, 7 DAYS A WEEK, PLEASE CALL (800) 503-3724
For access to ROADSIDE ASSISTANCE ONLY, please call (866) 519-6478

STATE OF OKLAHOMA
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WARNING

Oklahoma state law requires a current copy of the Security Verification Form must be surrendered to the motor license agent or other registering agency upon application or renewal for a motor vehicle license plate. (The foregoing does not apply to an Operator's Liability Insurance Policy).

The other copy of the Security Verification Form is to be carried in the motor vehicle at all times, and produced by any driver of the vehicle upon request for inspection by any peace officer or representative of the Department of Public Safety. In case of an accident, the Security Verification Form shall be shown upon request of any person affected by the accident.

NOTE

If the named insured has been issued an Operator's License Insurance Policy, this Security Verification Form applies in lieu of an Owner's Security Verification Form.

ID-OK (0721)

WARNING

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ID-OK (0721)

NOTICE OF INFORMATION PRACTICES

We collect nonpublic personal and financial information about you from the following:

Information we received from you on applications and other forms directly from you;

Information about your transactions with us and our affiliates;

Information we receive from other insurers and from insurer databases;

Information we receive from a public or a consumer reporting agency.

We do not disclose any nonpublic personal and financial information about our insureds or former insureds to anyone, except as permitted by law. We may make disclosures to affiliated or nonaffiliated third parties, as applicable, without prior authorization as permitted by law.

We restrict access to nonpublic personal and financial information about you to those employees who need to know that information to provide service to you. We maintain physical, electronic and procedural safeguards that comply with Federal and State law to guard your nonpublic personal and financial information.

OKLAHOMA COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured shown in the "Declarations" may cancel this policy by mailing or delivering to us advance written notice of cancellation. Coverage shall cease and the policy period shall end on the latest date listed below:
   a. 12:01 A.M. of the day specified by the Named Insured in the request for cancellation.
   b. 12:01 A.M. on the day following receipt by the company.
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
   a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
   b. 30 days before the effective date of cancellation if we cancel for any other reason.

   After coverage has been in effect for more than 45 business days or after the effective date of a renewal of this policy, no notice of cancellation will be issued by us unless it is based on at least one of the following reasons:
   (1) Nonpayment of premium;
   (2) Discovery of fraud or material misrepresentation in the procurement of the insurance or with respect to any claims submitted under it;
   (3) Discovery of willful or reckless acts or omissions by you that increase any hazard insured against;
   (4) The occurrence of a change in the risk that substantially increases any hazard insured against after insurance coverage has been issued or renewed;
   (5) A determination by the Insurance Commissioner that the continuation of the policy would place us in violation of the insurance laws of this state;
   (6) Your conviction of a crime having as one of its necessary elements an act increasing any hazard insured against; or
   (7) Loss of or substantial changes in applicable reinsurance.
3. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that stated effective date and no later.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.
7. Automatic Termination

   This policy, or coverage for a "covered auto", may automatically terminate during the policy period as follows:
   a. This policy will automatically terminate at the end of the current policy period if:
      (1) You do not accept our offer to renew your policy by the end of the policy period; or
      (2) There is any failure to pay your renewal premium, when due. Our renewal offer is deemed rejected if there is any failure to pay your renewal premium, when due. Failure to pay your renewal premium includes any dishonored, rejected, or invalid payment.
   b. If other insurance on a "covered auto" is obtained, any similar insurance provided by this policy will terminate as to that "covered auto" on the effective date of the other insurance.
   c. Any coverage provided by this policy for a "covered auto" will automatically end when that "covered auto" is sold, assigned, gifted or transferred to anyone other than you or a "family member". Coverage for that "covered auto" will end the earlier of when:

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(1) Title is transferred to someone other than you or a "family member";

(2) Possession is transferred in connection with a bona fide sale of the "auto" to someone other than a driver shown in the "Declarations"; or

(3) No driver shown in the "Declarations" has an insurable interest in the "covered auto".

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the "Declarations" is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
   a. Make inspections and surveys at any time;
   b. Give you reports on the conditions we find; and
   c. Recommend changes.
2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
   a. Are safe or healthful; or
   b. Comply with laws, regulations, codes or standards.
3. Paragraphs **1.** and **2.** of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

E. Premiums

The first Named Insured shown in the "Declarations":

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual named insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property provided that notice of cancellation mailed to the first Named Insured's last mailing address known to us shall be sufficient notice to effect cancellation of this policy..

G. Nonrenewal

1. If we elect not to renew this policy, we will mail or deliver written notice of nonrenewal to the first Named Insured at least 45 days before:
   a. The expiration date of this policy; or
   b. An anniversary date of this policy, if it is written for a term longer than one year or with no fixed expiration date.
2. Any notice of nonrenewal will be mailed or delivered to the first Named Insured at the last mailing address known to us.
3. If notice is mailed:
   a. It will be considered to have been given to the first Named Insured on the day it is mailed.
   b. Proof of mailing will be sufficient proof of notice.
4. If notice of nonrenewal is not mailed or delivered at least 45 days before the expiration date or an anniversary date of this policy, coverage will remain in effect until 45 days after notice is given. Earned premium for such extended period of coverage will be calculated pro rata based on the rates applicable to the expiring policy.
5. We will not provide notice of nonrenewal if:
   a. We, or another company within the same insurance group, have offered to issue a renewal policy; or
   b. You have obtained replacement coverage or have agreed in writing to obtain replacement coverage.

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6. If we have provided the required notice of nonrenewal as described in **G.1.** above, and thereafter extend the policy for a period of 90 days or less, we will not provide an additional nonrenewal notice with respect to the period of extension.

H. Expiration

1. If you do not accept our offer to renew your policy by the end of the policy period, your policy will automatically expire at the end of the policy period.
2. If we fail to mail a proper renewal offer and you obtain other insurance, this policy will end on the effective date of that insurance.

I. Premium Or Coverage Changes At Renewal

1. If we elect to renew this policy, we will give written notice of any premium increase, change in deductible, or reduction in limits or coverage, to the first Named Insured, at the last mailing address known to us.
2. Any such notice will be mailed or delivered to the first Named Insured at least 45 days before:
   a. The expiration date of this policy; or
   b. An anniversary date of this policy, if it is written for a term longer than one year or with no fixed expiration date.
3. If notice is mailed:
   a. It will be considered to have been given to the first Named Insured on the day it is mailed.
   b. Proof of mailing will be sufficient proof of notice.
4. If the first Named Insured accepts the renewal, the premium increase or coverage changes will be effective the day following the prior policy's expiration or anniversary date.
5. If notice is not mailed or delivered at least 45 days before the expiration date or anniversary date of this policy, the premium, deductible, limits and coverage in effect prior to the changes will remain in effect until:
   a. 45 days after notice is given; or
   b. The effective date of replacement coverage obtained by the insured;

   whichever occurs first.

   If the first Named Insured then elects not to renew, any earned premium for the resulting extended period of coverage will be calculated pro rata at the lower of the new rates or rates applicable to the expiring policy.
6. We will not provide notice of the following:
   a. Changes in a rate or plan filed pursuant to the Property and Casualty Competitive Loss Cost Rating Act applicable to an entire class of business;
   b. Changes which are based upon the altered nature or extent of the risk insured; or
   c. Changes in policy forms filed with or approved by the Insurance Commissioner and applicable to an entire class of business.

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BUSINESS AUTO COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the "Declarations". The words "we", "us" and "our" refer to the company providing this insurance.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions.

WARNING MINIMUM LIMITS: IN SOME CASES, THE POLICY AFFORDS ONLY MINIMUM LIMITS OF LIABILITY FOR BODILY INJURY AND PROPERTY DAMAGE AS SPECIFIED BY THE COMPULSORY OR FINANCIAL RESPONSIBILITY LAW OF THE JURISDICTION WHERE THE "LOSS" OCCURRED. SUCH **MINIMUM LIMITS** MAY BE LESS THAN THE STATED POLICY LIMITS. IN OKLAHOMA, THE STATE MANDATORY MINIMUM LIMITS ARE $25,000 EACH PERSON, $50,000 EACH ACCIDENT, AND $25,000 FOR PROPERTY DAMAGE.

WARNING: Any person who knowingly, and with intent to injure, defraud or deceive any insurer, makes any claim for the proceeds of an insurance policy, containing any false, incomplete or misleading information, is guilty of a felony.

SECTION I – POLICY AGREEMENT

A. We agree to insure you subject to the terms, conditions, and exclusions of this policy. This agreement is conditioned upon timely receipt of your valid premium payment.

B. The "Declarations", conditions, application, and any issued endorsements are incorporated into and made part of this policy.

C. We will only insure you for the coverages and the Limits of Insurance for which a premium is shown in the "Declarations" of the policy.

D. This policy is issued and renewed in reliance upon the truth and accuracy of the information you provide in the application for this insurance.

E. The premium shown in the "Declarations" was computed based on rates in effect at the time the policy was issued. On each renewal, continuation, or anniversary of the effective date of this policy, we will compute the premium in accordance with our rates and rules then in effect.

F. You have a continuing duty to notify us of any changes relating to "autos" or individuals covered under this policy.

G. You have a continuing duty to notify us of any changes in the nature and/or location of your business, your "ownership" and/or use of any "auto" or in your "employees" or "family members" or number of individuals that use "covered autos".

SECTION II – COVERED AUTOS LIABILITY COVERAGE

A. Coverage

If you pay the premium for Liability Coverage, we will pay all sums an "insured" legally must pay as damages because of "bodily injury" or "property damage" to which this insurance applies, caused by an "accident" and resulting from the "ownership", maintenance or use of a "covered auto".

We will also pay all sums an "insured" legally must pay as a "covered pollution cost or expense" to which this insurance applies, caused by an "accident" and resulting from the "ownership", maintenance or use of "covered autos". However, we will only pay for the "covered pollution cost or expense" if there is "bodily injury" or "property damage" to which this insurance applies that is caused by the same "accident".

We have the right and duty to defend any "insured" against a "suit" asking for such damages or a "covered pollution cost or expense". However, we have no duty to defend any "insured" against a "suit" seeking damages for "bodily injury" or "property damage" or a "covered pollution cost or expense" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Covered Autos Liability Coverage Limit of Insurance has been exhausted by payment of judgments or settlements.

1. Who Is An Insured

The following are "insureds":

a. You for any "covered auto".

b. Anyone else while using, with your permission, and within the scope of that permission, a "covered auto" you "own", hire or borrow except:

(1) The "owner" or anyone else from whom you hire or borrow a "covered auto".

This exception does not apply if the "covered auto" is a "trailer" connected to a "covered auto" you "own".

(2) Your "employee" if the "covered auto" is owned by that "employee" or a member of his or her household.

(3) Someone using a "covered auto" while he or she is working in a business of selling, repairing, servicing, storing, parking, road

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testing, delivering, washing, or valet parking of "autos", unless that business is your business specifically described in the "Declarations".

(4) Anyone other than your "employees", partners (if you are a partnership), members (if you are a limited liability company) or a lessee or borrower or any of their "employees", while moving property to or from a "covered auto".

(5) A partner (if you are a partnership) or a member (if you are a limited liability company) for a "covered auto" owned by him or her or a member of his or her household.

c. Anyone liable for the conduct of an "insured" described above but only to the extent of that liability.

2. **Certain Trailers, Mobile Equipment And Temporary Substitute Autos**

If Covered Autos Liability Coverage is provided by this Coverage Form, the following types of vehicles are also "covered autos" for Covered Autos Liability Coverage:

a. "Trailers" designed primarily for travel on public roads while attached to any motor vehicle described in the "Declarations" if the "trailer":

(1) Has a load capacity not greater than 2,000 pounds; and

(2) Is 12 feet or less in length.

b. "Mobile equipment" while being carried or towed by any motor vehicle described in the "Declarations".

c. Any "auto" you do not "own" while used with the permission of its "owner" as a temporary substitute for a "covered auto" you "own" that is out of service for a period of not greater than 30 days because of its:

(1) Breakdown;

(2) Repair;

(3) Servicing;

(4) "Loss"; or

(5) Destruction.

However, a temporary substitute does not include any "auto" available for the regular use of you, a "family member", or your "employees" unless that "auto" is insured under a separate policy of insurance that provides at least the "Minimum Limits".

3. **Coverage Extensions**

a. **Supplementary Payments**

We will pay for the "insured":

(1) All expenses we incur.

(2) Up to $2,000 for cost of bail bonds (including bonds for related traffic law violations) required because of an "accident" we cover. We do not have to furnish these bonds.

(3) The cost of bonds to release attachments in any "suit" against the "insured" we defend, but only for bond amounts within our Limit of Insurance.

(4) All reasonable expenses incurred by the "insured" at our request, including actual loss of earnings up to $250 a day because of time off from work.

(5) All court costs taxed against the "insured" in any "suit" against the "insured" we defend. However, these payments do not include attorneys' fees or attorneys' expenses taxed against the "insured".

(6) All interest on the full amount of any judgment that accrues after entry of the judgment in any "suit" against the "insured" we defend, but our duty to pay interest ends when we have paid, offered to pay or deposited in court the part of the judgment that is within our Limit of Insurance.

These payments will not reduce the Limit of Insurance.

b. **Out-of-state Coverage Extensions**

While a "covered auto" is away from the state where it is licensed, we will:

(1) Increase the Limit of Insurance for Covered Autos Liability Coverage to meet the limits specified by a compulsory or financial responsibility law of the jurisdiction where the "covered auto" is being used. This extension does not apply to the limit or limits specified by any law governing motor carriers of passengers or property.

(2) Provide the minimum amounts and types of other coverages, such as no-fault, required of out-of-state vehicles by the jurisdiction where the "covered auto" is being used.

(3) Unless otherwise required by law, no out-of-state coverage extension will be made if a "covered auto" is involved in an "accident" in a state other than the state where the policy was issued, if the "covered auto" was present in the state where the "accident" occurred for 60 or more

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days of the 365 days preceding the "accident".

We will not pay anyone more than once for the same elements of loss because of these extensions.

c. **Financial Responsibility Required**

When this policy is certified as proof of financial responsibility, this policy will comply with the law of the state in which the policy is written to the extent required. *If we make a payment for an "accident" which is not covered under the terms of this policy but which we paid solely to comply with the terms of a financial responsibility certification, you must reimburse us to the extent of such payment.* We will be obligated to pay no more than the minimum amount required by that agency or applicable law.

B. Exclusions

This insurance does not apply to any of the following:

1. **Expected Or Intended Injury**

"Bodily injury" or "property damage" expected or intended from the standpoint of the "insured".

2. **Contractual**

Liability assumed under any contract or agreement.

But this exclusion does not apply to liability for damages:

a. Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs after the execution of the contract or agreement; or

b. That the "insured" would have in the absence of the contract or agreement.

3. **Workers' Compensation**

Any obligation for which the "insured" or the "insured's" insurer, even if one does not exist, may be held liable under any workers' compensation, disability benefits or unemployment compensation law or any similar law.

4. **Employee Indemnification And Employer's Liability**

"Bodily injury" to:

a. An "employee" of the "insured" arising out of and in the course of:

(1) Employment by the "insured"; or

(2) Performing the duties related to the conduct of the "insured's" business; or

b. A person who is related by blood, marriage, or adoption (inclusive of wards and foster children) to the "employee" as described in Paragraph **a.** above.

This exclusion applies:

(1) Whether the "insured" may be liable as an employer or in any other capacity; and

(2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

But this exclusion does not apply to "bodily injury" to domestic "employees" not entitled to workers' compensation benefits or to liability assumed by the "insured" under an "insured contract". For the purposes of the Coverage Form, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.

5. **Fellow Employee**

"Bodily injury" to:

a. Any fellow "employee" of an "insured" arising out of and in the course of the fellow "employee's" employment or while performing duties related to the conduct of your business; or

b. A person who is related by blood, marriage, or adoption (inclusive of wards and foster children) to the fellow "employee" as described in Paragraph **a.** above.

6. **Care, Custody Or Control**

"Property damage" to or "covered pollution cost or expense" involving property owned or transported by an "insured" or in the "insured's" care, custody or control. But this exclusion does not apply to liability assumed under a sidetrack agreement.

7. **Handling Of Property**

"Bodily injury" or "property damage" resulting from the handling of property:

a. Before it is moved into or onto your "covered auto"; or

b. After it is moved from your "covered auto".

8. **Movement Of Property By Mechanical Device**

"Bodily injury" or "property damage" resulting from the movement of property by a mechanical device (other than a hand truck) unless the device is attached to the "covered auto".

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9. **Operations**

"Bodily injury" or "property damage" arising out of the operation of:

a. Any equipment listed in Paragraphs **6.b.** and **6.c.** of the definition of "mobile equipment"; or

b. Machinery or equipment that is on, attached to or part of a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

10. **Completed Operations**

"Bodily injury" or "property damage" arising out of your work after that work has been completed or abandoned.

In this exclusion, your work means:

a. Work or operations performed by you or on your behalf; and

b. Materials, parts or equipment furnished in connection with such work or operations.

Your work includes warranties or representations made at any time with respect to the fitness, quality, durability or performance of any of the items included in Paragraph **a.** or **b.** above.

Your work will be deemed completed at the earliest of the following times:

(1) When all of the work called for in your contract has been completed;

(2) When all of the work to be done at the site has been completed if your contract calls for work at more than one site; or

(3) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

11. **Pollution**

"Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

a. That are, or that are contained in any property that is:

(1) Being transported or towed by, handled or handled for movement into, onto or from the "covered auto";

(2) Otherwise in the course of transit by or on behalf of the "insured"; or

(3) Being stored, disposed of, treated or processed in or upon the "covered auto";

b. Before the "pollutants" or any property in which the "pollutants" are contained are moved from the place where they are accepted by the "insured" for movement into or onto the "covered auto"; or

c. After the "pollutants" or any property in which the "pollutants" are contained are moved from the "covered auto" to the place where they are finally delivered, disposed of or abandoned by the "insured".

Paragraph **a.** above does not apply to fuels, lubricants, fluids, exhaust gases or other similar "pollutants" that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the "covered auto" or its parts if:

(1) The "pollutants" escape, seep, migrate or are discharged, dispersed or released directly from an "auto" part designed by its manufacturer to hold, store, receive or dispose of such "pollutants"; and

(2) The "bodily injury", "property damage" or "covered pollution cost or expense" does not arise out of the operation of any equipment listed in Paragraphs **6.b.** and **6.c.** of the definition of "mobile equipment".

Paragraphs **b.** and c. above of this exclusion do not apply to "accidents" that occur away from premises owned by or rented to an "insured" with respect to "pollutants" not in or upon a "covered auto" if:

(a) The "pollutants" or any property in which the "pollutants" are contained are upset, overturned or damaged as a result of the maintenance or use of a "covered auto"; and

(b) The discharge, dispersal, seepage, migration, release or escape of the "pollutants" is caused directly by such upset, overturn or damage.

12. **War**

"Bodily injury" or "property damage" arising directly or indirectly out of:

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a. War, including undeclared or civil war;

b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

c. Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

13. Racing

"Covered autos" while used in any racing or demolition contest or stunting activity, or while practicing for such contest or activity. This insurance also does not apply while that "covered auto" is being prepared for such a contest or activity.

14. Undisclosed Drivers

"Bodily injury" or "property damage", in excess of the "Minimum Limits", caused by your "covered auto" when operated by **an unlisted**:

a. "family member";

b. person who resides in your household;

c. "employee" of yours; or

d. "regular operator";

unless the "accident" occurred no later than 30 days after the Undisclosed Driver became a "family member", began residing in your household, became your "employee", or became a "regular operator", whichever occurred first.

This exclusion applies to claims against any "insured" for the negligent supervision, hiring, employment, training or monitoring of the Undisclosed Driver.

You must provide us with all requested information to show when any Undisclosed Driver became a "family member", began residing in your household, became your "employee", or became a "regular operator".

15. Motor Vehicles With Less Than Four Wheels Or Designed For Off Road Use

"Bodily injury" or "property damage" resulting from the "ownership", maintenance or use of any motor vehicle which has fewer than four wheels or which is designed for use mainly off public roads such as any type of all-terrain or quad vehicle, dune buggy, go-cart, or golf cart.

16. Trailer Towed By Motor Vehicle Not Listed On This Policy

"Bodily injury" or "property damage", in excess of the "Minimum Limits", caused by your "covered auto" when it is a "trailer" attached to a motor vehicle which is not a "covered auto" on this policy.

17. Renting Or Leasing A Covered Auto

"Bodily injury" or "property damage" resulting from any "covered auto" that occurs after the "covered auto" has been entrusted to anyone other than you or a "family member" for consignment; sale; promoting sale; subleasing; leasing; renting; or selling, and is no longer in your possession.

This exclusion does not apply if you or any "family member" lend your "covered auto" to another person for reimbursement of operating expenses only.

18. Crime

"Bodily injury" or "property damage" resulting from an "insured's" commission of, or attempt to commit, a "crime".

19. Auto Business

"Bodily injury" or "property damage" arising out of the "covered auto's" use in auto business operations, including, but not limited to, the selling, repairing, servicing, storing, parking, road testing, delivering, washing, or valet parking of "autos", unless that business is yours and it was specifically declared and described on your policy.

20. Punitive Damages

This insurance does not apply to "punitive damages" or defense of any "suit" for the "punitive damages" aspect of the claim.

21. Federal Tort Claims Act

Any obligation for which the United States Government is held responsible under the Federal Tort Claims Act.

22. Nuclear Energy Liability

An "accident" for which any person is insured under nuclear energy liability insurance. This exclusion applies even if the limits of that insurance are exhausted.

23. Silica Or Silica-related Dust

a. "Bodily injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, or ingestion of, "silica" or "silica-related dust".

b. "Property damage" arising, in whole or in part, out of the actual, alleged, threatened or suspected contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".

c. Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying,

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neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any "insured" or by any other person or entity.

24. Explosives

"Bodily injury" or "property damage" caused by the explosion of explosives you make, sell or transport.

25. Public Or Livery Passenger Conveyance

"Bodily injury" or "property damage" resulting from the "ownership", maintenance or use of the "covered auto" as a public or livery conveyance for passengers. This exclusion does not apply to shared-expense car pools.

26. Transportation Network Company

"Bodily injury" or "property damage" resulting from the "ownership", maintenance or use of the "covered auto" by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the "covered auto" and whether or not a ride request has been received or accepted.

27. On-demand Delivery Services

"Bodily injury" or "property damage" resulting from the "ownership", maintenance or use of the "covered auto" by any person who is logged into a "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered or picked up are in the "covered auto", and whether or not a delivery request has been received or accepted.

28. Wrong Delivery Of Liquid Products

"Bodily injury" or "property damage" resulting from the delivery of any liquid into the wrong receptacle or to the wrong address, or from the delivery of one liquid for another, if the "bodily injury" or "property damage" occurs after delivery has been completed.

Delivery is considered completed even if further service or maintenance work, or correction, repair or replacement is required because of wrong delivery.

29. Rolling Stores

"Bodily injury" or "property damage" resulting from the handling, use or condition of any item the "insured" makes, sells or distributes if the injury or damage occurs after the "insured" has relinquished possession of the item.

30. Trailer Not Listed On This Policy

"Bodily injury" or "property damage", in excess of the "Minimum Limits", caused by your "covered auto" when towing a "trailer" not listed on this policy and the "trailer":

a. Has a load capacity greater than 2,000 pounds and/or is more than 12 feet in length; and

b. Is owned or hired by you or your "employee" for more than 30 consecutive days prior to an "accident."

31. Time Constraints

"Bodily injury" or "property damage" caused when your "covered auto" is used to deliver property under time constraints, unless the business is your business and the use was specifically declared and described on your policy.

32. Vehicle Sharing

This insurance does not apply to the "ownership", operation, maintenance, use, loading or unloading of a "covered auto" involved in a "Vehicle Sharing" transaction. This includes a "loss" that occurs while the "covered auto" is unoccupied pending pickup or drop-off of the vehicle at the commencement and/or termination of such transaction. For this exclusion, "Vehicle Sharing" means the sharing of "private passenger autos" for temporary noncommercial use by individuals, pursuant to a written agreement between the individual and the legal entity that sets forth the terms of use, as facilitated and/or promoted by a group or legal entity engaged in such business or activity. This exclusion does not apply to the operation of a "covered auto" by you.

33. Professional Services Not Covered

This insurance does not apply to:

a. "Bodily injury" resulting from the providing or the failure to provide any medical or other "professional services".

b. "Bodily injury" resulting from food or drink furnished with these services.

c. "Bodily injury" or "property damage" resulting from the handling of corpses.

If a court with proper jurisdiction finds that any exclusion is invalid or unenforceable, that exclusion is revised so it applies to all damages in excess of the "Minimum Limits".

C. Limit Of Insurance

Regardless of the number of "covered autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for the total of all damages and "covered pollution cost or expense" combined resulting from any one "accident" is the Limit Of Insurance for

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Covered Autos Liability Coverage shown in the "Declarations".

All "bodily injury", "property damage" and "covered pollution cost or expense" resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one "accident".

No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Medical Payments Coverage endorsement, Uninsured Motorists Coverage endorsement or Underinsured Motorists Coverage endorsement attached to this Coverage Part.

Covered Autos Liability Coverage is provided in this Coverage Part in accordance with coverage required by the Compulsory Insurance Law of Oklahoma.

SECTION III – PHYSICAL DAMAGE COVERAGE

A. Coverage

1. We will pay for "loss" to a "covered auto" or its equipment under:

   a. **Comprehensive Coverage**

   Subject to the Limits of Insurance, if you pay the premium for Comprehensive Coverage, we will pay for "loss" to your "covered auto" and its permanently attached equipment from any "comprehensive loss" if the "Declarations" indicate Comprehensive Coverage is provided for that "auto".

   However, you have the option of having glass breakage caused by a "covered auto's" collision or overturn considered a "loss" under Collision Coverage.

   b. **Collision Coverage**

   Subject to the Limits of Insurance, if you pay the premium for Collision Coverage, we will pay for "loss" to your "covered auto" and its permanently attached equipment when it collides with another object, upsets or overturns, if the "Declarations" indicate Collision Coverage is provided for that "auto".

2. **Coverage Extensions**

   a. **Transportation Expenses**

   We will pay up to $20 per day, to a maximum of $600, for temporary transportation expense incurred by you because of the total theft of a "covered auto" that is a "private passenger auto". We will pay only for those "covered autos" for which you carry Comprehensive Coverage. We will pay for temporary transportation expenses incurred during the period beginning 48 hours after the theft and ending when the "covered auto" is returned to use or we pay for its "loss".

   b. **Limited Physical Damage Coverage – Mexico**

   Mexico is outside of the territory to which this policy applies. There is no Liability Coverage for losses in Mexico. However, if you have paid the premium for Comprehensive Coverage or Collision Coverage on a "covered auto", and the "covered auto" sustains a covered "loss" under Comprehensive Coverage or Collision Coverage while in the portion of the Republic of Mexico that lies within 50 miles of its border with the United States, and if the "covered auto" was not within the Republic of Mexico:

   (1) For more than 10 consecutive days from its entry into Mexico at the time of the "loss"; or

   (2) More than 10 times in any 30 day period during the last 12 months prior to the date of "loss".

   The following coverage and limitations shall apply:

   (1) If we would have paid the cost to repair the "covered auto" under **SECTION III – PHYSICAL DAMAGE COVERAGE** if that "loss" had occurred within the policy territory, we will pay the cost to repair the "covered auto", subject to all of the limitations and other terms of **SECTION III – PHYSICAL DAMAGE COVERAGE** and this policy, if you return the "covered auto" to the United States during the policy period and have the "covered auto" repaired within the United States.

   (2) The cost of towing, transportation, storage and salvage of the "covered auto" are not covered for any "accident" or "loss" that occurs in the Republic of Mexico, and those costs are your responsibility.

   (3) No other coverage shall be provided under **SECTION III – PHYSICAL DAMAGE COVERAGE** or this policy for any "accident" or "loss" that occurs within the Republic of Mexico.

   Important Notice: Unless you have automobile liability insurance written by a Mexican insurance company, you may spend many hours or days in jail, if you have an accident in Mexico. This Limited Physical Damage Coverage – Mexico

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does not satisfy the laws of Mexico that require operators of motor vehicles to purchase Liability Coverage from an insurer licensed in the Republic of Mexico. You are required to buy that insurance to operate a motor vehicle in Mexico. We cannot sell or give you that insurance.

REFER TO **SECTION IV – BUSINESS AUTO CONDITIONS, B. General Conditions, 7. Policy Period, Coverage Territory**, for important information on the territorial limitations of coverage.

B. Exclusions

1. We will not pay for "loss" caused by or resulting from any of the following. Such "loss" is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the "loss".

   a. **Nuclear Hazard**

      (1) The explosion of any weapon employing atomic fission or fusion; or

      (2) Nuclear reaction or radiation, or radioactive contamination, however caused.

   b. **War Or Military Action**

      (1) War, including undeclared or civil war;

      (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

      (3) Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

2. We will not pay for "loss" to any "covered auto" while used in any racing or demolition contest or stunting activity, or while practicing for such contest or activity. We will also not pay for "loss" to any "covered auto" while that "covered auto" is being prepared for such a contest or activity.

3. We will not pay for "loss" due and confined to:

   a. Wear and tear, freezing, mechanical or electrical breakdown or failure, or faulty workmanship by the "insured" or their chosen repair facility.

   b. Blowouts, punctures or other road damage to tires.

   c. Failure to maintain proper levels of lubricant and/or coolant, in accordance with vehicle specifications.

   This exclusion does not apply to such "loss" resulting from the total theft of a "covered auto".

4. We will not pay for "loss" to any of the following:

   a. Tapes, records, discs or other similar audio, visual or data electronic devices designed for use with audio, visual or data electronic equipment.

   b. Any device designed or used to detect speed-measuring equipment, such as radar or laser detectors, and any jamming apparatus intended to elude or disrupt speed-measuring equipment.

   c. Any electronic equipment, without regard to whether this equipment is permanently installed, that reproduces, receives or transmits audio, visual or data signals.

   d. Any accessories used with the electronic equipment described in Paragraph **c.** above.

5. Exclusions **4.c.** and **4.d.** do not apply to equipment designed to be operated solely by use of the power from the "auto's" electrical system that, at the time of "loss", is:

   a. Permanently installed in or upon the "covered auto";

   b. Removable from a housing unit which is permanently installed in or upon the "covered auto";

   c. An integral part of the same unit housing any electronic equipment described in Paragraphs **a.** and **b.** above; or

   d. Necessary for the normal operation of the "covered auto" or the monitoring of the "covered auto's" operating system.

6. We will not pay for "loss" to a "covered auto" due to "diminution in value".

7. We will not pay for "loss" to any "covered auto" arising out of the entrustment of the "covered auto" to anyone other than you or a "family member" for consignment; sale; promoting sale; subleasing; leasing; renting; or selling.

   This exclusion does not apply if you or any "family member" lend your "covered auto" to another person for reimbursement of operating expenses only.

8. We will not pay for "loss" caused by or resulting to any "covered auto" arising from an "insured's" commission of, or attempt to commit, a "crime".

9. We will not pay for "loss" due to theft or conversion of your "covered auto":

   a. By you, a "family member", or a resident of your household;

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b. By an "employee"; or

c. Prior to its delivery to you.

This exclusion does not apply to the interests of loss payees in a "covered auto". If we pay the loss payee, you must reimburse us for payment.

10. We will not pay for "loss" to your "covered auto" due to conversion, embezzlement or secretion by any person or affiliate of any person in possession of your "covered auto" under a bailment lease, conditional sale, purchase agreement, mortgage or other encumbrance not specifically declared and described on this policy.

    This exclusion does not apply to the interests of loss payees in a "covered auto". If we pay the loss payee, you must reimburse us for payment.

11. We will not pay for "loss" while the "covered auto" is used in auto business operations, including but not limited to, the selling, repairing, servicing, storing, road testing, or delivering of "autos", unless that business is yours and it was specifically declared and described on your policy.

12. We will not pay for "loss" to your "covered auto" caused intentionally by or at the direction of an "insured".

13. This insurance does not apply to "loss" to a "covered auto" while such "auto" is involved in a "Vehicle Sharing" transaction. This includes a "loss" that occurs while the "covered auto" is unoccupied pending pickup or drop-off of the vehicle at the commencement and/or termination of such transaction. For this exclusion, "Vehicle Sharing" means the sharing of "private passenger autos" for temporary noncommercial use by individuals, pursuant to a written agreement between the individual and the legal entity that sets forth the terms of use, as facilitated and/or promoted by a group or legal entity engaged in such business or activity. This exclusion does not apply to the operation of a "covered auto" by you.

14. We will not pay for "loss" to any "covered auto":

    a. While your "covered auto" is used in any illicit trade or transportation, or due to your "covered auto's" destruction or confiscation by governmental or civil authorities because you, or, if you are a natural person, any "family member" engaged in illegal activities. This includes "loss" due to or as a consequence of a seizure of a "covered auto" by federal or state law enforcement officers as evidence in a case against you under state or federal Controlled Substances Acts if you are convicted in such case; or

    b. Repossession by any entity acting on behalf of the "owner" of the "covered auto".

    This exclusion does not apply to the interests of loss payees in a "covered auto". If we pay the loss payee, you must reimburse us for payment.

15. This insurance does not apply to any "covered auto" used as a public or livery conveyance for passengers. This exclusion does not apply to shared-expense car pools.

16. This insurance does not apply to any "covered auto" used by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the "covered auto" and whether or not a ride request has been received or accepted.

17. This insurance does not apply to any "covered auto" used by any person who is logged into a "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered or picked up are in the "covered auto", and whether or not a delivery request has been received or accepted.

18. We will not pay for any of the following costs:

    a. Estimating fees;

    b. Teardown charges;

    c. Handling fees;

    d. Negotiating charges;

    e. Administrative fees;

    f. Higher than reasonable (for the area) storage or towing fees;

    g. Any other charges which are not part of the necessary cost of repairing the vehicle; or

    h. Storage charges from a repair or towing facility, after the "insured" has been notified by the Company to release the vehicle to a non-charging storage facility.

19. We will not pay for "loss" to any of the following:

    a. Television antennas;

    b. Awnings or cabanas; or

    c. Equipment designed to create added living facilities.

20. We will not pay for any expense or subsequent cost (including, but not limited to, storage and rental charges) due to the unavailability of stock repair parts or repair service in the vicinity of the location where the

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"loss" to the "covered auto" occurred or the stolen "covered auto" is recovered.

C. Limits Of Insurance

1. The most we will pay for "loss" to any one "covered auto" is the lesser of:
   a. The actual cash value of the damaged or stolen property as of the time of the "loss";
   b. The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality; or
   c. Any Stated Amount limit of liability shown in the "Declarations" for the "covered auto".
2. An adjustment for depreciation and physical condition will be made in determining actual cash value in the event of a total "loss".
3. If a repair or replacement results in better than like kind or quality, we will not pay for the amount of the betterment.
4. If we pay the Stated Amount limit of liability shown in the "Declarations", for theft or total loss, then:
   a. The titled "owner" of that "auto" shall transfer and deliver to us the title and other requested documents; and
   b. We shall be entitled to any salvage recovery regardless of the amount paid for the "loss".
5. Subject to all other Limits of Liability, "loss" to "non-factory equipment" is subject to the following Limits of Liability:
   a. If the "Declarations" does not show a Stated Amount limit of liability for a "covered auto", when that "covered auto" sustains a "loss" to which Physical Damage Coverage applies, the maximum amount we will pay for the "loss" will also include any limit for "non-factory equipment" shown on the "Declarations", or $2,000, whichever is higher.
   b. If the "Declarations" show a Stated Amount limit of liability, the value of the "covered auto" with its "non-factory equipment" will be used by us to determine the amount of the "loss" to which Physical Damage Coverage applies. The amount we will pay as the result of the "loss" shall not exceed the Stated Amount limit of liability shown in the "Declarations". However, the most we will pay for "loss" to "non-factory equipment" is the Limit shown in the "Declarations" for "non-factory equipment", or $2,000, whichever is higher.
   c. "Non-factory equipment" means "permanently attached" parts, equipment, devices, accessories, enhancements, modifications and changes that are not the original equipment or enhancements installed by the vehicle manufacturer or its authorized dealer as a manufacturer's option at the time of original purchase.

      "Non-factory equipment" may include, but is not limited to "permanently attached":

      (1) Welding equipment; carpet cleaning equipment; refrigeration equipment; and cooking equipment;
      (2) Furnishings; van conversion; and any equipment used for sleeping;
      (3) Pickup truck camper shells, caps, covers, bed liners; and converted truck beds;
      (4) Special carpeting, custom paint, murals, decals, striping and graphics;
      (5) Load securing equipment and devices;
      (6) GPS and other navigation systems;
      (7) Communication devices including telephones; microphones; hands-free devices; two-way mobile radios; and citizen-band radios;
      (8) Personal computers and internet access systems; and
      (9) Electronic equipment that plays, records, reproduces, receives or transmits audio, visual or data signals. Electronic equipment that is "permanently attached" and installed in the housing, opening or other location that is normally used by the "auto" manufacturer for that equipment, that has been installed by the "auto" manufacturer or by the dealer as a manufacturer's option, and is considered part of the "covered auto", shall not be treated as "non-factory equipment".

      No coverage applies under this policy for parts, equipment, devices, accessories, enhancements, modifications or changes that are not "permanently attached".
   d. "Permanently attached" means affixed in the "covered auto" by use of brackets, screws, bolts, welding or other means so the item so affixed cannot be removed without tools.
   e. Subject to the limits of liability set forth above, and the deductibles, adjustments and reductions set forth in your policy, the

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most we will pay for a covered "loss" to "non-factory equipment" is the lesser of:

(1) The actual cash value of the "non-factory equipment";

(2) The amount necessary to repair physical damage to the "non-factory equipment";

(3) The amount necessary to replace the stolen or damaged "non-factory equipment" with other property of like kind and quality.

D. Deductible

For each "covered auto", our obligation to pay for, repair, return or replace damaged or stolen property will be reduced by the applicable deductible shown in the "Declarations".

SECTION IV – BUSINESS AUTO CONDITIONS

The following conditions apply in addition to the Common Policy Conditions:

A. Loss Conditions

1. Appraisal For Physical Damage Loss

If you and we disagree on the amount of "loss", either may demand an appraisal of the "loss". In this event, each party will select a competent appraiser. The two appraisers will select a competent and impartial umpire. The appraisers will state separately the actual cash value and amount of "loss". If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

a. Pay its chosen appraiser; and

b. Bear the other expenses of the appraisal and umpire equally.

If we submit to an appraisal, we will still retain our right to deny the claim.

2. Duties In The Event Of Accident, Claim, Suit Or Loss

We have no duty to provide coverage under this policy unless there has been full compliance with the following duties:

a. In the event of "accident", claim, "suit" or "loss", you must give us or our authorized representative prompt notice of the "accident" or "loss". Include:

(1) How, when and where the "accident" or "loss" occurred;

(2) The "insured's" name and address; and

(3) To the extent possible, the names and addresses of any injured persons and witnesses.

b. Additionally, you and any other involved "insured" must:

(1) Assume no obligation, make no payment or incur no expense without our consent, except at the "insured's" own cost.

(2) Immediately send us copies of any request, demand, order, notice, summons or legal paper received concerning the claim or "suit".

(3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit".

(4) Authorize us to obtain reasonably related medical records or other pertinent information.

(5) Submit to examination, at our expense, by physicians of our choice, as often as we reasonably require.

(6) Agree to examinations under oath at our request and give us a signed statement of your answers. A parent or guardian may be present if examination under oath is required of a minor.

(7) Provide us with all documentation or other evidence required to show when any Undisclosed Driver was hired as your "employee", began residing in your household, or became a "regular operator" of "covered autos."

c. If there is "loss" to a "covered auto" or its equipment, you must also do the following:

(1) Promptly notify the police if the "covered auto" or any of its equipment is stolen.

(2) Take all reasonable steps, at our expense, to protect the "covered auto" from further damage. Also, keep a record of your expenses for consideration in the settlement of the claim.

(3) Permit us to inspect the "covered auto" and records proving the "loss" before its repair or disposition.

(4) Agree that we may retrieve and use all data contained in the Global Positioning System (GPS) data records and an Event Data Recorder (EDR) or similar device.

3. Legal Action Against Us

No one may bring a legal action against us under this Coverage Form until:

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a. There has been full compliance with all the terms of this Coverage Form; and

b. Under Covered Autos Liability Coverage, we agree in writing that the "insured" has an obligation to pay or until the amount of that obligation has finally been determined by judgment after trial. No one has the right under this policy to bring us into an action to determine the "insured's" liability.

4. **Loss Payment – Physical Damage Coverages**

At our option, we may:

a. Pay for, repair or replace damaged or stolen property;

b. Return the stolen property, at our expense. We will pay for any damage that results to the "auto" from the theft; or

c. Take all or any part of the damaged or stolen property at an agreed or appraised value.

If we pay for the "loss", our payment will include the applicable sales tax for the damaged or stolen property.

5. **Transfer Of Rights Of Recovery Against Others To Us**

If any person or organization to or for whom we make payment under this Coverage Form has rights to recover damages from another, those rights are transferred to us. That person or organization must do everything necessary to secure our rights and must do nothing after "accident" or "loss" to impair them.

B. General Conditions

1. **Bankruptcy**

Bankruptcy or insolvency of the "insured" or the "insured's" estate will not relieve us of any obligations under this Coverage Form.

2. **Concealment, Misrepresentation Or Fraud**

This policy was issued in reliance upon the information provided on your insurance application. We may rescind this policy as of its inception at any time, including after the occurrence of an "accident" or "loss", if you or someone acting on your behalf:

a. Made incorrect statements or representations to us with regard to any material fact or circumstance;

b. Concealed or misrepresented any material fact or circumstance; or

c. Engaged in fraudulent conduct;

at the time of application. This means that we will not be liable for any claims or damages that would otherwise be covered.

Any changes we make at your request to this policy after inception will also be made in reliance upon information you provide. If you or someone acting on your behalf:

a. Make incorrect statements or representations to us with regard to any material fact or circumstance;

b. Conceal or misrepresent any material fact or circumstance; or

c. Engage in fraudulent conduct;

in connection with a requested change, we may rescind that change or otherwise reform the policy. We may do this at any time, including after the occurrence of an "accident" or "loss".

When we have not rescinded or reformed the policy, we may still deny coverage for an "accident" or "loss" if you or someone acting on your behalf, in connection with the policy application, or in connection with any requested change, have concealed or misrepresented any material fact or circumstance, or engaged in fraudulent conduct, and that concealment, misrepresentation, or fraudulent conduct was material to the risk we assumed.

We may deny coverage for an "accident" or "loss" if you or any other insured knowingly concealed or misrepresented any material fact or circumstance or engaged in fraudulent conduct in connection with the presentation or settlement of a claim. We reserve all rights to indemnity against a person committing fraud or misrepresentation for all payments made and costs incurred.

This provision will not apply up to the compulsory or financial responsibility limits required by Oklahoma law for the "loss".

3. **Liberalization**

If we revise this Coverage Form to provide more coverage without additional premium charge, your policy will automatically provide the additional coverage as of the day the revision is effective in your state.

4. **No Benefit To Bailee – Physical Damage Coverages**

We will not recognize any assignment or grant any coverage for the benefit of any person or organization holding, storing or transporting property for a fee regardless of any other provision of this Coverage Form.

5. **Other Insurance**

a. For any "covered auto" you "own", this Coverage Form provides primary insurance. For any "covered auto" you do not "own", the insurance provided by this

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Coverage Form is excess over any other collectible insurance. However, while a "covered auto" which is a "trailer" is connected to another vehicle, the Covered Autos Liability Coverage this Coverage Form provides for the "trailer" is:

(1) Excess while it is connected to a motor vehicle you do not "own"; or

(2) Primary while it is connected to a "covered auto" you "own".

b. Regardless of the provisions of Paragraph **a.** above, this Coverage Form's Covered Autos Liability Coverage is primary for any liability assumed under an "insured contract".

c. When this Coverage Form and any other Coverage Form or policy covers on the same basis, either excess or primary, we will pay only our share. Our share is the proportion that the Limit of Insurance of our Coverage Form bears to the total of the limits of all the Coverage Forms and policies covering on the same basis.

d. When two policies providing liability coverage apply to an "auto" and:

(1) One provides coverage to a named insured who is an authorized motor vehicle dealer; and

(2) The other provides coverage to a person not engaged in that business; and

(3) At the time of an "accident" a person described in **(2)** is operating the "auto", then that person's liability insurance is primary and the dealer's liability insurance is excess over any insurance available to that person, provided:

(a) The person is operating the "auto" with the permission of the dealer;

(b) The change in financial responsibility is evidenced by a release signed by the person operating the "auto"; and

(c) No fee or lease charge has been made by the dealer for the use of the "auto".

6. Premium Audit

a. The estimated premium for this Coverage Form is based on the exposures you told us you would have when this policy began. We will compute the final premium due when we determine your actual exposures. The estimated total premium will be credited against the final premium due and the first Named Insured will be billed for the balance, if any. The due date for the final premium or retrospective premium is the date shown as the due date on the bill. If the estimated total premium exceeds the final premium due, the first Named Insured will get a refund.

b. If this policy is issued for more than one year, the premium for this Coverage Form will be computed annually based on our rates or premiums in effect at the beginning of each year of the policy.

7. Policy Period, Coverage Territory

Under this Coverage Form, we cover "accidents" and "losses" occurring:

a. During the policy period which:

(1) Starts the later of:

(a) The effective date and time shown in the "Declarations"; or

(b) At the time this policy was purchased with valid payment;

(2) Ends the earliest of:

(a) The day after the first Named Insured shown in the "Declarations" asks us to cancel the policy or any other agreed future date;

(b) The effective date of any notice of cancellation we issue to the first Named Insured shown in the "Declarations";

(c) The end of the policy period shown in the "Declarations"; or

(d) When any Automatic Termination event occurs.

b. Within the coverage territory.

The coverage territory is:

(1) The United States of America;

(2) The territories and possessions of the United States of America;

(3) Puerto Rico; and

(4) Canada.

We also cover "loss" to, or "accidents" involving, a "covered auto" while being transported between any of these places.

8. Two Or More Coverage Forms Or Policies Issued By Us

If this Coverage Form and any other Coverage Form or policy issued to you by us or any company affiliated with us applies to the same "accident", the aggregate maximum Limit of Insurance under all the Coverage Forms or policies shall not exceed the highest

applicable Limit of Insurance under any one Coverage Form or policy. This condition does not apply to any Coverage Form or policy issued by us or an affiliated company specifically to apply as excess insurance over this Coverage Form.

SECTION V – DEFINITIONS

A. "Accident" is an unexpected and unforeseen happening or event and includes continuous or repeated exposure to the same conditions resulting in "bodily injury" or "property damage".

B. "Additional auto" means:

1. An "auto" you acquire during the policy period on the date you become "owner" for **SECTION II – COVERED AUTOS LIABILITY COVERAGE** and/or **SECTION III – PHYSICAL DAMAGE COVERAGE** if:

a. We already insure all "autos" you "own" on the date of acquisition;

b. No other insurance policy provides coverage for that "auto"; and

c. You tell us within 30 days after you acquire that "auto" that you want us to insure that "auto" for that coverage.

With respect to **SECTION II – COVERED AUTOS LIABILITY COVERAGE**, if we provide coverage for an "additional auto" in accordance with this Paragraph **1.**, we will provide the same coverage for such "additional auto" as we provide for any "auto" shown in the "Declarations".

With respect to **SECTION III – PHYSICAL DAMAGE COVERAGE**, if we provide coverage for an "auto" you acquire in addition to any "auto" specifically described in the "Declarations", and the "additional auto" is:

a. A "private passenger auto", we will provide the broadest coverage we provide for any "auto" shown in the "Declarations"; or

b. Any "auto" other than a "private passenger auto", and you have purchased Physical Damage Coverage for at least one "auto" other than a "private passenger auto", we will provide the broadest coverage for which the "additional auto" is eligible.

2. If you add any coverage, increase your limits or make any other changes to this policy during the 30 day period after you acquire an "additional auto", these changes to your policy will not become effective until after you ask us to add the coverage, increase your limits or make such changes.

C. "Auto" means:

1. A land motor vehicle, "trailer" or semitrailer designed and required to be licensed for travel on public roads; or

2. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

D. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these.

E. "Comprehensive loss" means any "loss" caused by an event other than a collision. A "comprehensive loss" includes, but is not limited to, a "loss" caused by:

1. Missiles or falling objects;

2. Fire;

3. Theft or larceny;

4. Explosion or earthquake;

5. Windstorm;

6. Hail, water or flood;

7. Malicious mischief or vandalism;

8. Riot or civil commotion;

9. Contact with an animal, bird or falling object; or

10. Broken glass (except when it is the result of collision).

F. "Covered auto" means:

1. Any "auto" described in the "Declarations" for which a premium charge is shown unless you have asked us to delete that "auto" from the policy prior to the "loss";

2. An "additional auto"; or

3. A "replacement auto".

G. "Covered pollution cost or expense" means any cost or expense arising out of:

1. Any request, demand, order or statutory or regulatory requirement that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

2. Any claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

"Covered pollution cost or expense" does not include any cost or expense arising out of the

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actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

a. That are, or that are contained in any property that is:

(1) Being transported or towed by, handled or handled for movement into, onto or from the "covered auto";

(2) Otherwise in the course of transit by or on behalf of the "insured"; or

(3) Being stored, disposed of, treated or processed in or upon the "covered auto";

b. Before the "pollutants" or any property in which the "pollutants" are contained are moved from the place where they are accepted by the "insured" for movement into or onto the "covered auto"; or

c. After the "pollutants" or any property in which the "pollutants" are contained are moved from the "covered auto" to the place where they are finally delivered, disposed of or abandoned by the "insured".

Paragraph **a.** above does not apply to fuels, lubricants, fluids, exhaust gases or other similar "pollutants" that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the "covered auto" or its parts, if:

(1) The "pollutants" escape, seep, migrate or are discharged, dispersed or released directly from an "auto" part designed by its manufacturer to hold, store, receive or dispose of such "pollutants"; and

(2) The "bodily injury", "property damage" or "covered pollution cost or expense" does not arise out of the operation of any equipment listed in Paragraph **6.b.** or **6.c.** of the definition of "mobile equipment".

Paragraphs **b.** and **c.** above do not apply to "accidents" that occur away from premises owned by or rented to an "insured" with respect to "pollutants" not in or upon a "covered auto" if:

(a) The "pollutants" or any property in which the "pollutants" are contained are upset, overturned or damaged as a result of the maintenance or use of a "covered auto"; and

(b) The discharge, dispersal, seepage, migration, release or escape of the "pollutants" is caused directly by such upset, overturn or damage.

H. "Crime" means any act or omission that is:

1. A state or federal felony in the United States;

2. An attempt to flee or elude law enforcement or a crime scene; or

3. An illegal activity, trade, or transportation.

"Crime" does not include:

a. Misdemeanor violations of the motor vehicle or traffic laws other than an attempt to:

(1) Flee or elude law enforcement; or

(2) Flee a crime scene;

b. Vehicular homicide; or

c. Driving under the influence of alcohol or any illegal substance.

I. "Declarations" means the document issued by us, listing your policy information for the policy period shown therein. This information may include: the available coverage(s) and their limits, the premiums for each coverage, the "autos" covered by this policy, the types of coverage for each specifically described "auto", the drivers you told us operate "autos" covered by this policy, and other policy information.

J. "Delivery network platform" means an online-enabled application or digital network, used to connect customers:

1. With drivers; or

2. With local vendors using drivers;

for the purpose of providing "delivery services" for compensation. "Delivery network platform" does not include a "transportation network platform".

K. "Delivery services" means to deliver or pickup tangible property for charge, fee or compensation and includes messenger and courier services.

L. "Diminution in value" means the actual or perceived loss in market value or resale value which results from a direct and accidental "loss".

M. "Employee" means anyone you pay for services and have the authority to direct in their performance. This includes direct staff, independent contractors, "leased workers" and "temporary workers".

N. "Family member" means, if you are an individual, a person related to you by blood, marriage or adoption who resides in your household. It also includes any minor residing in your household in the legal custody of you or a person related to you by blood, marriage, or adoption.

O. "Insured" means any person or organization qualifying as an insured in the Who Is An Insured provision of the applicable coverage. Except with

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respect to the Limit of Insurance, the coverage afforded applies separately to each insured who is seeking coverage or against whom a claim or "suit" is brought.

P. "Insured contract" means:

1. A lease of premises;
2. A sidetrack agreement;
3. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
4. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
5. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another to pay for "bodily injury" or "property damage" to a third party or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement; or
6. That part of any contract or agreement entered into, as part of your business, pertaining to the rental or lease, by you or any of your "employees", of any "auto". However, such contract or agreement shall not be considered an "insured contract" to the extent that it obligates you or any of your "employees" to pay for "property damage" to any "auto" rented or leased by you or any of your "employees".

An "insured contract" does not include that part of any contract or agreement:

a. That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;

b. That pertains to the loan, lease or rental of an "auto" to you or any of your "employees", if the "auto" is loaned, leased or rented with a driver; or

c. That holds a person or organization engaged in the business of transporting property by "auto" for hire harmless for your use of a "covered auto" over a route or territory that person or organization is authorized to serve by public authority.

Q. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".

R. "Loss" means direct and accidental loss or damage.

S. "Minimum Limits" means the minimum limits of liability for bodily injury and property damage as specified by a compulsory or financial responsibility law of the jurisdiction where the "loss" occurred.

T. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

1. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
2. Vehicles maintained for use solely on or next to premises you own or rent;
3. Vehicles that travel on crawler treads;
4. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

   a. Power cranes, shovels, loaders, diggers or drills; or

   b. Road construction or resurfacing equipment such as graders, scrapers or rollers;
5. Vehicles not described in Paragraph **1.**, **2.**, **3.** or **4.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

   a. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well-servicing equipment; or

   b. Cherry pickers and similar devices used to raise or lower workers; or
6. Vehicles not described in Paragraph **1.**, **2.**, **3.** or **4.** above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

   a. Equipment designed primarily for:

      (1) Snow removal;

      (2) Road maintenance, but not construction or resurfacing; or

      (3) Street cleaning;

   b. Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

   c. Air compressors, pumps and generators, including spraying, welding, building

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cleaning, geophysical exploration, lighting or well-servicing equipment.

However, "mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

U. "Occupying" with respect to an "auto" means in, upon, or entering into, or alighting from.

V. "Own" or "ownership", with respect to an "auto", means to:

1. Hold legal title to or registration of the "auto";
2. Have legal possession of the "auto" subject to a written security agreement; or
3. Have legal possession of the "auto" under a lease agreement for a continuous period of 6 months or longer.

W. "Owner", with respect to an "auto", means the person who:

1. Holds the legal title to or registration of the "auto";
2. Has legal possession of an "auto" that is subject to a written security agreement; or
3. Has legal possession of an "auto" leased to that person by a written agreement for a continuous period of 6 months or longer.

X. "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

Y. "Private passenger auto" means a land motor vehicle:

1. Of the private passenger, pickup body, or cargo van type;
2. Designed for operation principally upon public roads and highways;
3. With at least four wheels; and
4. With a gross vehicle weight rating of 12,000 pounds or less, according to the manufacturer's specifications.

However, "private passenger auto" does **not** include step-vans, parcel delivery vans, or cargo cutaway vans or other vans with cabs separate from the cargo area.

Z. "Professional services" means a service requiring specialized knowledge and skill usually of a mental or intellectual nature and usually requiring a license, certification, or registration.

AA. "Property damage" means damage to or loss of use of tangible property.

BB. "Punitive damages" means all damages intended or awarded to:

1. Punish or deter wrongful, malicious or unlawful conduct by any person or entity; or
2. Fine, penalize or impose a statutory penalty upon any person or entity.

"Punitive damages" include, but are not limited to, damages referred to under any law as punitive damages, exemplary damages, treble damages or statutory multiple damages, but do not include damages intended to compensate for "bodily injury" or "property damage".

CC. "Regular operator" means any person who has regular access or regularly uses a "covered auto", including any "employee" or other person that uses a "covered auto" to work for you or whose work requires use of a "covered auto" or who is otherwise expected to use a "covered auto" while working for you.

DD. "Replacement auto" means an "auto" that you acquire that replaces one specifically described in the "Declarations" due to termination of your "ownership" of the replaced "auto" or due to mechanical breakdown of, deterioration of, or "loss" to the replaced "auto" that renders it permanently inoperable if:

1. You acquire the "replacement auto" during the policy period; and
2. No other insurance policy provides coverage for the "replacement auto".

If we provide coverage for a "replacement auto", we will provide the same coverage for the "replacement auto" as we provide for the replaced "auto". We will provide that coverage for a period of 30 days after you become the "owner" of such "replacement auto". We will not provide any coverage after this 30 day period unless within this period you ask us to insure the "replacement auto".

If you add any coverage, increase your limits or make any other changes to your policy during this 30 day period, these changes to your policy will not become effective until after you ask us to add the coverage, increase your limits or make such changes.

EE. "Silica" means silicon dioxide (occurring in crystalline, amorphous and impure forms), silica particles, silica dust or silica compounds.

FF. "Silica-related dust" means a mixture or combination of silica and other dust or particles.

GG. "Suit" means a civil proceeding in which:

1. Damages because of "bodily injury" or "property damage"; or
2. A "covered pollution cost or expense";

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to which this insurance applies, are alleged.

"Suit" includes:

a. An arbitration proceeding in which such damages or "covered pollution costs or expenses" are claimed and to which the "insured" must submit or does submit with our consent; or

b. Any other alternative dispute resolution proceeding in which such damages or "covered pollution costs or expenses" are claimed and to which the insured submits with our consent.

HH. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

II. "Trailer" means a non-motorized vehicle, including a semitrailer, farm wagon or farm implement, designed to be towed on public roads by a motor vehicle. A "trailer" does not include a mobile home.

JJ. "Transportation network platform" means an online-enabled application or digital network used to connect passengers with drivers using vehicles for the purpose of providing prearranged transportation services for compensation.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Mercury Business Auto Broadening Endorsement

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

I. NEWLY ACQUIRED OR FORMED ENTITY (BROAD FORM NAMED INSURED)

II. EMPLOYEES AS INSUREDS

III. SUPPLEMENTARY PAYMENTS

IV. ADDITIONAL TRANSPORTATION EXPENSE

V. ACCIDENTAL AIRBAG DEPLOYMENT COVERAGE

VI. GLASS REPAIR – DEDUCTIBLE WAIVER

VII. TWO OR MORE DEDUCTIBLES

VIII. AMENDED DUTIES IN EVENT OF ACCIDENT, CLAIM, SUIT OR LOSS

IX. UNINTENTIONAL ERROR, OMISSION, OR FAILURE TO DISCLOSE HAZARDS

X. PRIMARY AND NONCONTRIBUTORY IF REQUIRED BY CONTRACT

XI. BODILY INJURY REDEFINED TO INCLUDE RESULTANT MENTAL ANGUISH

XII. PERSONAL EFFECTS COVERAGE

XIII. LOSS OF USE EXPENSES

XIV. DEVICES DESIGNED FOR USE WITH AUDIO, VISUAL OR DATA ELECTRONIC EQUIPMENT

XV. PHYSICAL DAMAGE DEDUCTIBLE – VEHICLE TRACKING SYSTEM

XVI. CHAINS, TARPS, AND BINDERS COVERAGE

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BUSINESS AUTO COVERAGE FORM

I. NEWLY ACQUIRED OR FORMED ENTITY (Broad Form Named Insured)

SECTION II – COVERED AUTOS LIABILITY COVERAGE, A. Coverage, 1. Who Is An Insured, the following is added:

Any business entity newly acquired or formed by you during the policy period provided you own 50% or more of the business entity and the business entity is not separately insured for Business Auto Coverage. Coverage is extended up to a maximum of 180 days following acquisition or formation of the business entity. Coverage under this provision is afforded only until the end of the policy period. Coverage does not apply to an "accident" which occurred before you acquired or formed the organization.

II. EMPLOYEES AS INSUREDS

SECTION II – COVERED AUTOS LIABILITY COVERAGE, A. Coverage, 1. Who Is An Insured, the following is added:

Any "employee" of yours is an "insured" while using a "covered auto" you do not "own", lease, hire, rent, or borrow, which is used in connection with your business. This includes any "employee" of yours while operating an "auto" that qualifies as a "covered auto" according to the terms of the Employer's Non-Ownership Liability Coverage endorsement if you pay a premium for that coverage.

III. SUPPLEMENTARY PAYMENTS

SECTION II – COVERED AUTOS LIABILITY COVERAGE, A. Coverage, 3. Coverage Extensions, a. Supplementary Payments, Subparagraphs **(2)** and **(4)** are replaced by the following:

(2) Up to $3,000 for cost of bail bonds (including bonds for related traffic law violations) required because of an "accident" we cover. We are not obligated to furnish these bonds.

(4) All reasonable expenses incurred by the "insured" at our request, including actual loss of earnings up to $500 a day because of time off from work.

IV. ADDITIONAL TRANSPORTATION EXPENSE

SECTION III – PHYSICAL DAMAGE COVERAGE, A. Coverage, 2. Coverage Extensions, a. Transportation Expenses, is amended by:

Replacing $20 per day with $50 per day, and the $600 maximum with $1,000 maximum. If your business shown in the "Declarations" is other than an auto dealership, we will also pay up to $1,000 for reasonable and necessary costs incurred by you to return a stolen "covered auto" from the place where it is recovered to its usual garaging location.

V. ACCIDENTAL AIRBAG DEPLOYMENT COVERAGE

SECTION III – PHYSICAL DAMAGE COVERAGE, B. Exclusions, 3.a., is amended to add the following:

This exclusion does not apply to the accidental discharge of an airbag.

VI. GLASS REPAIR – DEDUCTIBLE WAIVER

SECTION III – PHYSICAL DAMAGE COVERAGE, D. Deductible, the following is added:

No deductible applies to glass damage if the glass is repaired rather than replaced.

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VII. TWO OR MORE DEDUCTIBLES

SECTION III – PHYSICAL DAMAGE COVERAGE, D. Deductible, the following is added:

If two or more "company" policies or coverage forms apply to the same accident:

1. If the applicable Business Auto deductible is the smallest, it will be waived; or
2. If the applicable Business Auto deductible is not the smallest, it will be reduced by the amount of the smallest deductible; or
3. If the loss involves two or more Business Auto coverage forms or policies the smallest deductible will be waived.

For the purpose of this endorsement "company" means the company providing this insurance and any of the affiliated members of the Mercury Insurance Group of companies.

VIII. AMENDED DUTIES IN EVENT OF ACCIDENT, CLAIM, SUIT OR LOSS

The requirement in **SECTION IV – BUSINESS AUTO CONDITIONS, A. Loss Conditions, 2. Duties In The Event Of Accident, Claim, Suit, Or Loss, a.**, In the event of "accident", you must notify us of an "accident" applies only when the "accident" is known to:

(1) You, if you are an individual;
(2) A partner, if you are a partnership;
(3) A member, if you are a limited liability company; or
(4) An executive officer or insurance manager, if you are a corporation.

IX. UNINTENTIONAL ERROR, OMISSION, OR FAILURE TO DISCLOSE HAZARDS

SECTION IV – BUSINESS AUTO CONDITIONS, B. General Conditions, 2. Concealment, Misrepresentation, or Fraud, the following is added:

Any unintentional omission of or error in information given by you, or unintentional failure to disclose all exposures or hazards existing as of the effective date or at any time during the policy period shall not invalidate or adversely affect the coverage for such exposure or hazard or prejudice your rights under this insurance. However, you must report the undisclosed exposure or hazard to us as soon as reasonably possible after its discovery. This provision does not affect our right to collect additional premium or exercise our right of cancellation or non-renewal.

X. PRIMARY AND NONCONTRIBUTORY IF REQUIRED BY CONTRACT

SECTION IV – BUSINESS AUTO CONDITIONS, B. General Conditions, 5. Other Insurance, the following is added and supersedes any provision to the contrary:

This insurance is primary to and will not seek contribution from any other insurance available to an additional insured under your policy provided that:

(1) The additional insured is a Named Insured under such other insurance; and
(2) You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

XI. BODILY INJURY REDEFINED TO INCLUDE RESULTANT MENTAL ANGUISH

SECTION V – DEFINITIONS, D. "Bodily Injury" is amended by adding the following:

"Bodily injury" also includes mental anguish but only when the mental anguish arises from other bodily injury, sickness, or disease.

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XII. PERSONAL EFFECTS COVERAGE

SECTION III – PHYSICAL DAMAGE COVERAGE, A. Coverage, 2. Coverage Extensions, the following is added:

Personal Effects

We will pay up to $500 for "loss" to personal effects which:

(1) Are owned by you or a driver listed in the "Declarations"; and

(2) Are in or on a "covered auto" at the time of "loss".

This coverage applies only in the event of a total theft of a "covered auto". No additional deductible applies to this coverage. Tapes, records, discs or other similar devices used with audio, visual or data electronic equipment are not considered personal effects.

XIII. LOSS OF USE EXPENSES

If you pay the premium for Hired Auto Physical Damage, we will pay expenses for which you become legally responsible to pay for loss of use of an "auto" due to "loss" or "accident" covered by Hired Auto Physical Damage. However, the most we will pay for any expenses for loss of use is $20 per day, to a maximum of $600. The insurance provided by this provision is excess over any other collectible insurance.

XIV. DEVICES DESIGNED FOR USE WITH AUDIO, VISUAL OR DATA ELECTRONIC EQUIPMENT

SECTION III – PHYSICAL DAMAGE COVERAGE, B. Exclusions, 4.a., is replaced by the following:

a. Under Comprehensive Coverage we will pay up to $200 for "loss" to tapes, records, discs or other similar audio, visual, data electronic devices designed for use with audio, visual or data electronic equipment. We will pay only if the tapes, records, discs or other similar audio, visual or data electronic devices designed for use with audio, visual or data electronic equipment:

(1) Are your property or that of a driver listed in the "Declarations"; and

(2) Are in a "covered auto" at the time of "loss".

This coverage applies only in the event of a total theft of a "covered auto". No additional deductible applies to this coverage.

XV. PHYSICAL DAMAGE DEDUCTIBLE – VEHICLE TRACKING SYSTEM

SECTION III – PHYSICAL DAMAGE COVERAGE, D. Deductible, is amended by adding the following:

Any Comprehensive Deductible shown in the "Declarations" will be reduced by 50% for any "loss" caused by theft if the "covered auto" is equipped with a vehicle tracking device such as a radio tracking device or a global position device and that device was the method of recovery of that "covered auto" by the "insured" or law enforcement.

XVI. CHAINS, TARPS, AND BINDERS COVERAGE

SECTION III – PHYSICAL DAMAGE COVERAGE, C. Limits Of Insurance, the following is added:

The most we will pay for the "loss" to chains, tarpaulins, binders, and cargo securing devices will be $500.

The chains, tarpaulins, binders, or cargo securing devices must be in or on the "covered auto" at the time of "loss".

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

BLANKET WAIVER OF SUBROGATION

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

SECTION IV – BUSINESSS AUTO CONDITIONS, A. Loss Conditions, 5. Transfer of Rights Of Recovery Against Others To Us, the following is added:

We waive any right of recovery we may have against any person or organization to the extent required of you by a written contract executed prior to any "accident" or "loss", provided that the "accident" or "loss" arises out of the operations contemplated by such contract. The waiver applies only to the person or organization designated in such contract.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

BLANKET ADDITIONAL INSURED

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM
TRUCKERS COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

The following is added to the **Section II - Liability Coverage,** Paragraph **A.1. Who Is An Insured** Provision:

Any person or organization that you are required to include as additional insured on the Coverage Form in a written contract or agreement that is signed and executed by you before the "bodily injury" or "property damage" occurs and that is in effect during the policy period is an "insured" for Liability Coverage, but only for damages to which this insurance applies and only to the extent that person or organization qualifies as an "insured" under the Who Is An Insured provision contained in Section II.

Policy Number: BA350000009608	Policy Effective Date: 08/01/2025
Company: American Mercury Insurance Company	Agent: RICH & CARTMILL INC
Applicant/Named Insured: TOBE ENERGY LLC	

UNDISCLOSED DRIVERS COVERAGE SELECTION FORM

I understand that there are situations where this policy's stated Liability Coverage limit indicated in the "Declarations" may not apply, and that instead, lower minimum Liability limits (as required by law of the jurisdiction where the "loss" occurred) will apply. This may happen when an Undisclosed Driver - unlisted "employee", "family member", person who resides in my household, or "regular operator"- of an auto covered by this policy is involved in a "loss", in which case, the policy's Liability Coverage limit may be lowered according to the terms, conditions, and exclusions of my policy.

I understand it is my responsibility to fully read my policy, endorsements, and "Declarations" and acknowledge my Undisclosed Drivers coverage selection (indicated by a check mark) below.

☐ I elect that Undisclosed Drivers be covered according to **SECTION II – COVERED AUTOS LIABILITY COVERAGE, B. Exclusions, Exclusion 14 Undisclosed Drivers** of the Business Auto Coverage Form. I understand that Undisclosed Drivers are subject to reduced Liability limits according to the terms, conditions, and exclusions of my policy. The reduced Liability limits will apply if my "covered auto" is operated by an Undisclosed Driver who is my "employee", my "family member", a person who resides in my household, or a "regular operator" of my "covered auto", unless the "accident" occurred no later than **30 days** after the Undisclosed Driver became my "employee", became my "family member", began residing in my household, or became a "regular operator" of my "covered auto", whichever occurred first. I hereby also decline the other options listed on this coverage selection form.

☐ I elect to purchase the Additional Driver Coverage endorsement. I understand that Undisclosed Drivers are subject to reduced Liability limits according to the terms, conditions, and exclusions of my policy and the Additional Driver Coverage endorsement. The reduced Liability limits will apply if my "covered auto" is operated by an Undisclosed Driver who is my "employee", my "family member", a person who resides in my household, or a "regular operator" of my "covered auto", unless the "accident" occurred during the policy term when the Undisclosed Driver became my "employee", became my "family member", began residing in my household, or became a "regular operator" of my "covered auto", whichever occurred first. I hereby also decline the other options listed on this coverage selection form.

☒ I elect to purchase the Expanded Driver Coverage endorsement. This selection does not negate my responsibility now and in the future to disclose my "employees", my "family members", persons who reside in my household, or "regular operators" of my "covered autos" as is otherwise sought in the application process. I also understand Undisclosed Drivers are covered under my policy's stated Liability limit according to the terms, conditions, and exclusions of my policy and the Expanded Driver Coverage endorsement. I hereby also decline the other options listed on this coverage selection form.

I understand that changes to Undisclosed Drivers coverage may only be made effective on my next policy renewal date after this signed selection form is received by the Company. I understand and agree that selection of the above coverage option will apply to my insurance policy and any future renewals or replacements of such policy. If I decide to select another option at a future time, I understand that I must notify the Company in writing.

_____ _____

Signature (Applicant/Named Insured) **Date**

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

OKLAHOMA UNINSURED MOTORISTS COVERAGE – NON-STACKED

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. Coverage

We will pay, in accordance with Title 36, Oklahoma Statutes, all sums the "insured" is legally entitled to recover as compensatory damages from the owner or driver of an "uninsured motor vehicle". The damages must result from "bodily injury" sustained by the "insured" caused by an "accident". The owner's or driver's liability for these damages must result from the ownership, maintenance or use of the "uninsured motor vehicle".

B. Who Is An Insured

If the Named Insured is designated in the "Declarations" as:

1. An individual, then the following are "insureds":
   a. The Named Insured and any "family members".
   b. Anyone else "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.
   c. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".
2. A partnership, limited liability company, corporation or any other form of organization, then the following are "insureds":
   a. Anyone "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.
   b. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".

C. Exclusions

This insurance does not apply to:

1. "Bodily injury" sustained by:
   a. Any person who is a "family member" while "occupying", or when struck by, any motor vehicle owned by that person which is not insured for Uninsured Motorists Coverage at the time of the "accident" and to whom no other Uninsured Motorists Coverage is available.
   b. Any "insured" while "occupying" an "auto":
      (1) Owned by the Named Insured or any person who is a "family member"; or
      (2) Furnished or available for the regular use of the Named Insured or any person who is a "family member";

      if such "auto" is not insured under a motor vehicle insurance policy at the time of the "accident".
2. The direct or indirect benefit of any insurer or self-insurer under any workers' compensation, disability benefits or similar law.
3. Anyone using a vehicle without a reasonable belief that the person is entitled to do so.
4. Punitive or exemplary damages.
5. "Bodily injury" arising directly or indirectly out of:
   a. War, including undeclared or civil war;
   b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
   c. Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.
6. The "ownership", operation, maintenance, use, loading or unloading of a "covered auto" while such "auto" is involved in a "Vehicle Sharing" transaction. This includes a "loss" that occurs while the "covered auto" is unoccupied pending pickup or drop-off of the vehicle at the commencement and/or termination of such

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transaction. For this exclusion, "Vehicle Sharing" means the sharing of private passenger "autos" for temporary noncommercial use by individuals, pursuant to a written agreement between the individual and the legal entity that sets forth the terms of use, as facilitated and/or promoted by a group or legal entity engaged in such business or activity.

7. "Bodily injury" sustained by an "insured" "occupying" a "covered auto" while:
   a. The driver of the "covered auto" is a "transportation network company driver" who is logged on to a Transportation Network Company ("TNC") "digital network"; or
   b. The "covered auto" is being used to provide a "prearranged ride".
8. This insurance does not apply to any "covered auto" while being used by any person who is logged into a "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered or picked up are in the "covered auto", and whether or not a delivery request has been received or accepted.

D. Limit Of Insurance

1. Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for all damages resulting from any one "accident" is the Limit Of Insurance for Uninsured Motorists Coverage shown in the Schedule or "Declarations".
2. Any payment made by or on behalf of the owner or operator of a vehicle described in Paragraph **F.3.b.** of the definition of an "uninsured motor vehicle" shall not reduce or be a credit against our limit of insurance.
3. No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Liability Coverage Form or Medical Payments Coverage endorsement attached to this Policy.

   We will not make a duplicate payment under this coverage for any element of "loss" for which payment has been made by or for anyone who is legally responsible.

E. Changes In Conditions

The **Conditions** of the Policy are changed for **Uninsured Motorists Coverage,** as follows:

1. **Other Insurance** in the Business Auto Coverage Form is replaced by the following:

   If there is other applicable insurance available under one or more policies or provisions of coverage:

   a. The maximum recovery under all coverage forms or policies combined may equal but not exceed the highest applicable limit for any one vehicle under any coverage form or policy providing coverage on either a primary or excess basis.
   b. Any insurance we provide with respect to a vehicle the Named Insured does not own shall be excess over any other collectible uninsured motorists insurance providing coverage on a primary basis.
   c. If the coverage under this Coverage Form is provided:
      (1) On a primary basis, we will pay only our share of the "loss" that must be paid under insurance providing coverage on a primary basis. Our share is the proportion that our limit of insurance bears to the total of all applicable limits of insurance for coverage on a primary basis.
      (2) On an excess basis, we will pay only our share of the "loss" that must be paid under insurance providing coverage on an excess basis. Our share is the proportion that our limit of insurance bears to the total of all applicable limits of insurance for coverage on an excess basis.
2. **Duties In The Event Of Accident, Claim, Suit Or Loss** in the Business Auto Coverage Form is changed by adding the following:
   a. Promptly notify the police if a hit-and-run driver is involved; and
   b. Promptly send us copies of the legal papers if a suit is brought.
   c. A person seeking Uninsured Motorists Coverage must also notify us, in writing, of a tentative settlement between the "insured" and the insurer of an "uninsured motor vehicle" and allow us 60 days to advance payment in an amount equal to the tentative settlement to preserve our rights against the insurer, owner or operator of such "uninsured motor vehicle". This notice must be sent by certified mail and must include:
      (1) Written documentation of economic losses;
      (2) Copies of all medical bills; and
      (3) Written authorization or a court order allowing us to obtain reports from any employers and medical providers.

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3. **Transfer Of Rights Of Recovery Against Others To Us** is changed by adding the following:

   If we make any payment and the "insured" recovers from another party, the "insured" shall hold the proceeds in trust for us and pay us back the amount we have paid.

   Our rights do not apply under this provision with regard to Uninsured Motorists Coverage if we:

   a. Have been given written notice of a tentative settlement between an "insured" and the insurer of an "uninsured motor vehicle"; and

   b. Fail to advance payment to the "insured" in an amount equal to the tentative settlement within 60 days after receipt of notification.

   If we advance payment to the "insured" in an amount equal to the tentative settlement within 60 days after receipt of notification:

   a. That payment will be separate from any amount an "insured" is entitled to recover under the provisions of Uninsured Motorists Coverage; and

   b. We also have the right to recover the advanced payment.

4. The following condition is added:

   Arbitration

   a. If we and an "insured" disagree whether the "insured" is legally entitled to recover damages from the owner or driver of an "uninsured motor vehicle" or do not agree as to the amount of damages that is recoverable by that "insured", then the matter may be arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Either party may make a written demand for arbitration. In this event, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within 30 days, either may request that selection be made by a judge of a court having jurisdiction. Each party will pay the expenses it incurs and bear the expenses of the third arbitrator equally.

   b. Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives. Local rules of law as to arbitration procedure and evidence will apply.

   c. Any decision agreed to by the arbitrators will not be binding.

   d. If agreement by arbitration is not reached within three months from the date of demand, the "insured" may bring an action against anyone responsible for the use of a vehicle involved in the "accident".

F. Additional Definitions

As used in this endorsement:

1. "Family member" means a person related to an individual Named Insured by blood, marriage or adoption who is a resident of such Named Insured's household, including a ward or foster child.
2. "Occupying" means in, upon, getting in, on, out or off.
3. "Uninsured motor vehicle" means a land motor vehicle or "trailer":

   a. For which no liability bond or policy at the time of an "accident" provides at least the amounts required by the applicable law where a covered "auto" is principally garaged;

   b. That is an underinsured motor vehicle. An underinsured motor vehicle is a motor vehicle or "trailer" for which there is a liability bond or policy at the time of an accident, the liability limits of which are less than the amount of the claim of the person or persons making such claim, regardless of the amount of coverage of either of the parties in relation to each other;

   c. For which an insuring or bonding company denies coverage or is or becomes insolvent; or

   d. That is a hit-and-run vehicle and neither the driver nor owner can be identified.

   However, "uninsured motor vehicle" does not include any vehicle:

   a. Owned or operated by a self-insurer under any applicable motor vehicle law, except a self-insurer who is or becomes insolvent and cannot provide the amounts required by that motor vehicle law; or

   b. Designed for use mainly off public roads while not on public roads.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ANY AUTO LIABILITY COVERAGE

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

SECTION II – COVERED AUTOS LIABILITY COVERAGE

A. "Covered auto" shall also include any "auto" while used in your business.

However, this modification to the definition of "covered auto" does not apply to any "auto", the "ownership" of which is acquired prior to the policy period for which coverage is sought. But, for any "auto" that you acquire during a policy period, such "auto" will then be considered a "covered auto" for the remainder of that particular policy period.

B. The first paragraph under **C. Limit Of Insurance** is deleted and replaced by the following:

Regardless of the number of "covered autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for the total of all damages and "covered pollution cost or expense" combined resulting from any one "accident" is the Limit Of Insurance for Covered Autos Liability Coverage shown in the "Declarations" for the coverage provided by this endorsement.

All other terms, limits, exclusions, and conditions of the policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

HIRED AUTO LIABILITY COVERAGE

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

If you pay a premium for Hired Auto Liability coverage, then we agree to amend the policy definition of "covered auto" to include any "hired auto". We agree with you that the intent of this endorsement is to provide coverage for a "hired auto", the use of which is only incidental to your business, and not a regular or customary practice of your business. Coverage for "hired autos" extends only to applicable **SECTION II – COVERED AUTOS LIABILITY COVERAGE,** subject to the following:

1. When used in this endorsement, "hired auto" means an "auto":

a. Not owned by you or registered in your name;

b. With a gross vehicle weight of 45,000 pounds or less; and

c. Obtained by you under a short-term rental agreement not to exceed 30 days or borrowed by you for a period not to exceed 30 days.

"Hired auto" does not include any "auto" you rent, hire, lease or borrow from any of your "employees", partners (if you are a partnership) or members (if you are a limited liability company), or persons residing in their households.

2. An "insured" shall also include:

a. Any person using a "hired auto" with your express permission and within the scope of your permission; or

b. The "owner" of such "hired auto", any lessee from whom you are a sublease of the "hired auto", and any agent or employee of such "owner" or lessee, but only with respect to liability for acts or omissions of you or a person described in Paragraph **2.a.** above.

3. Any insurance provided under this endorsement for any "hired auto" shall be excess over any other valid and collectible insurance.

All other terms, limits, exclusions, and conditions of the policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EMPLOYER'S NON-OWNERSHIP LIABILITY COVERAGE

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

If you pay a premium for Employer's Non-Ownership Liability coverage, then we agree to amend the policy definition of your "covered auto" to include any "non-owned auto". We agree with you that the intent of this endorsement is to provide coverage for a "non-owned auto", the use of which is only incidental to your business, and not a regular or customary practice of your business. Coverage for "non-owned autos" extends only to applicable **SECTION II – COVERED AUTOS LIABILITY COVERAGE**.

1. For purposes of this endorsement, "non-owned auto" means any "auto" with a gross vehicle weight of 45,000 pounds or less which is used in connection with your business by any of your "employees". A "non-owned auto" does not include any "auto" you "own", lease, hire, rent, or borrow, nor any vehicle which is used for more than 30 days per year in your business. A "non-owned auto" includes an "auto" owned by your "employees" or partners or members of their household but only while used in your business.
2. The following are "insureds" under this endorsement:
   a. You for use of any "non-owned auto";
   b. Anyone else while using, with your permission, and within the scope of that permission, a "non-owned auto"; and
   c. Anyone liable for the conduct of an "insured" described above but only to the extent of that liability;

   However, none of the following are "insureds" under this endorsement:
   a. The "owner" of a "non-owned auto" or any agent or employee of such "owner"; or
   b. An executive officer of yours with respect to an "auto" owned by such officer or member of his or her household.
3. The insurance provided by this endorsement does not apply to "bodily injury" or "property damage" arising out of the "ownership", maintenance or use of any "non-owned auto" in the conduct of any partnership or joint venture of which you are a partner or member and which is not shown as the Named Insured in the "Declarations".
4. Any insurance provided under this endorsement for any "non-owned auto" shall be excess over any other valid and collectible insurance.

All other terms, limits, exclusions, and conditions of the policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXPANDED DRIVER COVERAGE

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

SECTION II – COVERED AUTOS LIABILITY COVERAGE, B. Exclusions, 14. Undisclosed Drivers does not apply.

All other terms, limits, exclusions, and conditions of the policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ROADSIDE ASSISTANCE COVERAGE

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
GARAGE COVERAGE FORM
MOTOR CARRIER COVERAGE FORM
TRUCKERS COVERAGE FORM

If you paid the premium for Roadside Assistance Coverage on a "covered auto", our authorized Roadside Assistance provider will provide services as described below up to a maximum of 6 occurrences for each "covered auto" per policy period and the limit shown in the "Declarations".

Our Roadside Assistance Provider will provide the following services to you at the place where you were disabled other than by "loss" within the scope of collision or comprehensive coverages:

1. Towing. You are responsible for charges and costs in excess of our limit;
2. Locksmith services, but not the cost of purchasing replacement keys or the labor to make replacement keys;
3. Battery jump-start;
4. Flat tire change;
5. Delivery of fuel and other motor vehicle operation fluids, but does not include the cost of the fuel or fluid; and
6. Towing from entrapment in snow, mud, water or sand, within 100 feet of a public road or highway.

If any of these services are performed by a provider other than our Roadside Assistance Provider, you will be reimbursed for reasonable and customary charges, as determined by our Roadside Assistance Provider. For consideration of payment, you must provide receipts for any of these services.

Exclusions

Our agreement to provide Roadside Assistance Coverage does not apply to:

1. Routine maintenance of a "covered auto";
2. Labor not related to the disablement;
3. Installation of products or materials not related to the disablement;
4. Labor or repair work performed at a service state, garage or repair shop;
5. Towing from a service station, garage or repair shop;
6. Tire repair;
7. Towing from entrapment in snow, mud, water or sand, more than 100 feet from a public road or highway;
8. Disablement that occurs on roads not regularly maintained, sand beaches, open fields, or areas designated as impassable due to construction, weather or earth movement;
9. Towing related to impoundment, abandonment, illegal parking or other violations of law;
10. Storage charges;
11. Mounting or removing of snow tires or chains; or
12. Assistance with jacks, levelers or awnings on a motor home.
13. Towing or storage related to "loss" within the scope of collision or comprehensive coverages.

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